

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARY HASTINGS KURIS,

Petitioner

VS.

RONALD DANA KURIS,

Respondent

) Case Number: FDI-24-800685

) Hearing Date: May 21, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: ATTORNEY FEES AND COSTS, COMPEL DECLARATION OF
DISCLOURE (FC 2107) + SANCTIONS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Mary Kuris (Wife) and Respondent Ronald Dana Kuris (Husband) married on 5/27/2000. In her Petition for Dissolution filed 12/16/2024, Wife states the parties separated on 12/14/2024, for a marriage of 24 years and 6 months. In his Response and Request for Dissolution of Marriage filed 1/14/2025, Husband states the parties separated on 4/22/2023, for a marriage of 22 years and 11 months. The parties do not have minor children. Both parties are self-represented.
- 2) On 1/14/2025, Husband filed a Declaration Regarding Acceptance of Service at P.O. Box. Husband lists a P.O. Box as his address because he is “living on a sailboat in San Francisco Bay, no physical address.”
- 3) On 3/2/2026, Wife filed a Declaration Regarding Service stating that her Preliminary Declaration of Disclosure was mailed to Husband on 10/31/2025.

- 1 4) On for hearing is Wife's Request for Order filed 3/30/2026 asking the Court to: (a) compel
2 Husband to serve his Preliminary Declaration of Disclosure; (b) order Husband to pay \$2,425 in
3 sanctions under Family Code section 2107(c); and (c) preclude Husband from presenting
4 evidence on any issue that should have been disclosed if he fails to comply with the Court's order
5 requiring him to serve his financial disclosures under Family Code section 2107(b). Wife states
6 that despite multiple communications with Husband, he has not yet served his financial
7 disclosures. Wife also states that she has incurred \$845 to consult with an attorney on this issue
8 and \$80 in costs to file and serve this motion. Wife seeks an additional \$1,500 in sanctions to
9 deter Husband's continued noncompliance.
- 10 5) Per the Proof of Service filed 5/14/2026, Wife's Request for Order was mailed to the P.O. Box
11 address the Court has on file for Husband on 4/8/2026.
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- 13 6) Husband did not file a Responsive Declaration.

14 **B. Findings and Order**

- 15 1) Family Code section 2104(f) provides: "The respondent shall serve the other party with the
16 preliminary declaration of disclosure either concurrently with the response to the petition, or
17 within 60 days of filing the response. The time periods specified in this subdivision may be
18 extended by written agreement of the parties or by court order." Husband filed his Response and
19 Request for Dissolution of Marriage on 1/14/2024. Husband's preliminary declaration of
20 disclosure was due for service on 3/14/2024. Wife states that she met and conferred with Husband
21 and at one point Husband promised to provide them by 3/23/2026 but then failed to do so.
- 22 2) Family Code section 2107(b)(1) and (2) provides in relevant part that if a party fails to serve their
23 preliminary declaration of disclosure, the Court may "compel a further response" and / or issue an
24 order "preventing the noncomplying party from presenting evidence on issues that should have
25 been covered in the declaration of disclosure."
- 26 3) Family Code section 2107(c) provides: "If a party fails to comply with any provision of this
27 chapter, the court shall, in addition to any other remedy provided by law, impose money sanctions
28 against the noncomplying party. Sanctions shall be in an amount sufficient to deter repetition of
29 the conduct or comparable conduct, and shall include reasonable attorney's fees, costs incurred,

1 or both, unless the court finds that the noncomplying party acted with substantial justification or
2 that other circumstances make the imposition of the sanction unjust.”

3 4) Husband shall serve his Preliminary Declaration of Disclosure no later than Friday, 6/12/2026 at
4 5:00 PM.

5 5) If Husband fails to serve his Preliminary Declaration of Disclosure, Husband shall not be
6 permitted to present evidence on issues that should have been covered in his Preliminary
7 Declaration of Disclosure.

8 6) The Court finds good cause to awards to Wife sanctions under Family Code section 2107(c),
9 albeit in the amount of \$1,500. Husband shall pay this amount to Wife no later than 5/31/2026 at
10 5:00 PM.

11 7) The Court will prepare the Findings and Order After Hearing.
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